

APRIL 1-15, 1979

Preparing the Ground

Mrs Indira Gandhi and her party lost again in Parliament; rather decisively this time. The sins of the Emergency are poised menacingly to catch up with her and her caucus with the passage of the Special Courts Bill which sailed through the Rajya Sabha despite the adroit manoeuvring of her political managers. Her party leaders were confident of defeating it in the 244-member Upper House where the ruling Janata Party is in a minority with only 70 members. Outwitted, the 65-odd Congress (I) MPs stormed out of the House on March 21 even before the formalities preceding the adoption of the bill were completed. Their supporters, the nine MPs belonging to All India Anna Dravida Munnetra Kazhagam (AIADMK), some Congressmen and a rag-tag band of Independents too saw no point in staying on in the House.

Amar Kant



INDIRA GANDHI

Row of Discord

The campaign should be institutionalised rather than personalised ("Commission's Omissions", February 2). The basic flaw is the fact that the Government in office unilaterally appoints and can remove (albeit through the President) members of the constitutionally independent Election Commission. The recommendations of the Moily Committee should be followed with immediate

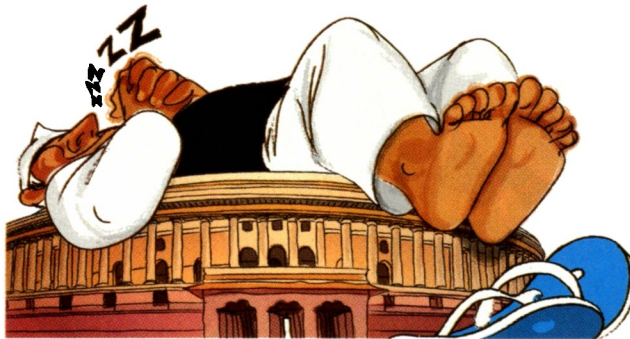
SAURABH SINGH

liable for negligence because an alternative course of treatment is available or another doctor would have followed a different procedure or practice.

DR RAJESH PARIKH,
via www.indiatoday.in

Falling Footfalls

The global economic slowdown and Mumbai terror attacks have hit the tourism sector badly ("Off the Map", February 16). We can't afford to be negligent about it. The



“ Dharmendra, Govinda and Jayaprada have flopped as MPs. They didn't take their job seriously. Now people will think twice before electing an actor as a parliamentarian. ”

GOPAL L. KARKAL, via www.indiatoday.in

Government needs to get its act together and do much more than just singing paeans to the theme of Incredible India. A strong campaign needs to be carried out to attract international tourists or else we will lose a major chunk of foreign exchange.

SHASHWAT KUMAR,
via www.indiatoday.in

effect; the leader of the Opposition should be involved in the selection process. N. Gopalaswami's successor, in that case, will be a consensus candidate commanding the respect and confidence of all the major parties.

BISHAN SAHAI,
via www.indiatoday.in

would, however, have been more sensible if the auction was conducted discreetly, without a fawning media in tow. Quite unwittingly, the bidders mocked the game of cricket and the sight was completely nauseating.

J. AKSHOBHYA,
via www.indiatoday.in

In the first edition of the IPL, high-profile players who were bought for astronomical prices turned out to be big flops. It was the brigade of unknown players who managed to run the show with their spirited performance. This time again obscene sums were spent on bidding for cricketers but will these players perform?

SHANMUGAM MUDALIAR,
via www.indiatoday.in

Error of Judgement

The Supreme Court ruling in the Jacob Mathew v/s State of Punjab and Others case noted that negligence is a breach of duty caused by either the omission or commission on the doctor's part ("10 Most Common Medical Mistakes", February 16). It is settled that in criminal law, negligence or recklessness to be held, must be of such a high degree as to be "gross". A simple "lack of care", "an error of judgement" or an "accident" is not proof of negligence. As long as the doctor follows accepted practices of treatment, he cannot be held

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